

an Order to Show Cause Re: Monetary Sanctions of \$250.00 for failure to timely close the estate administration and failure to comply with the Court's order. If a properly noticed Status Report or Petition for Final Distribution is noticed for a different date, the Court will vacate the October 5, 2026, date. **No appearance is necessary on today's calendar.**

ESTATE OF VIRGINIA WALTERS

CASE NUMBER: 25PB-0032987

This matter is on calendar for hearing on the Waiver of Accounting and Petition for Final Distribution. The will purports to devise the entirety of the estate to the trustee of the William C. Walters and Virginia M. Walters Revocable Trust. As a result, the trustee is the only individual entitled to distribution and the assignments of interest and waiver of accountings are without effect. Only the trustee of the trust can waive the requirement of an accounting. Consequently, the proposed distribution is incorrect. The Court notes the trustee has not been identified. Additionally, the notice to the Franchise Tax Board has not been provided as required by Probate Code Section 9202(c). Item 8 of the Petition states that notice to the Franchise Tax Board is not required, however this notice provision is mandatory.

Due to the defects, the Court is unable to determine if proper notice has been provided. The matter is continued to **Monday, September 21, 2026, at 2:30 p.m. in Department 44** for further proceedings on the Waiver of Accounting and Petition for Final Distribution. An amended Petition is required to be filed to address the issues raised above. Petitioner is also required to file and serve a new Notice of Hearing for the continued hearing date, along with a copy of the amended Petition, on all parties entitled to notice. An acknowledged statement by the trustee accepting the property under the terms of the trust is required to be filed in compliance with Local Rule 15.10(L). **No appearance is necessary on today's calendar.**

ESTATE OF ROBERT WOLOZ

CASE NUMBER: 26PB-0033475

This matter is on calendar for hearing on a Petition for Probate of Will. The matter has been properly noticed, with proof of service on file. Proof of proper publication has been filed. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed Order was lodged with the Court and will be executed. The Will is admitted to probate, and the original will shall be filed. No bond is required by the will, and letters shall issue. The matter is set for **Monday, December 21, 2026, at 2:30 p.m. in Department 44** for Confirmation of Filing the Inventory and Appraisal. The matter is set for **Monday, August 16, 2027, at 2:30 p.m. in Department 44** for Status of Administration. The Personal Representative is **ORDERED** to comply with Probate Code Section 12200 et seq. **No appearance is necessary on today's calendar.**

ESTATE OF GEORGE ZIRKLE

CASE NUMBER: 24PB-0032599

This matter is on calendar for further proceedings on a Petition for Order Under Probate Code § 850 and Confirmation of Estate Ownership of Uncollected Official Check. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition for Confirmation of Estate Ownership is **GRANTED**. A

proposed order has been submitted and will be executed by the Court. The Court notes the future date of November 16, 2026, for Status of Administration. **No appearance is necessary on today's calendar.**

TRUSTS

IN RE: ASHTON ROBERT LINDLEY SPECIAL NEEDS TRUST

CASE NUMBER: 26PB-0033232

This matter is on calendar for confirmation of filing the Inventory and Appraisal. The Final Inventory and Appraisal filed on August 3, 2026, is accepted by the Court. The bond is insufficient by \$270,126.10. The Trustee, or Counsel are **ORDERED** to file an ex parte application to increase the bond. The matter is continued to **Monday, September 28, 2026, at 2:30 p.m. in Department 44** for status of the bond. The Court notes the future date of May 10, 2027, for confirmation of filing the First Account and Report of Trustee. **No appearance is necessary on today's calendar.**

IN RE: THE CONWAY FAMILY TRUST

CASE NUMBER: 25PB-0033041

This matter is on calendar for hearing on an Order to Show Cause Re: Monetary Sanctions and for further proceedings to confirm filing of accounting. At the hearing on September 22, 2025, the Court granted a Petition to Compel Accounting and ordered Patricia Howard to prepare a trust accounting for the period of March 19, 2019, to May 27, 2025. No accounting has been filed. The Order to Show Cause was issued to Patricia Howard for her failure to appear at the prior hearing on June 29, 2026 and for her failure to provide the Trust accounting as previously ordered by the Court. No response to the Order to Show Cause has been filed. **An appearance is necessary on today's calendar to provide the Court with a status of the accounting. A failure to appear or to provide an adequate explanation for the failure to file the accounting will result in the imposition of sanctions.**

IN RE: THE GREGG CONWAY LIVING TRUST, AS FIRST AMENDED IN FULL

CASE NUMBER: 26PB-0033478

This matter is on calendar for hearing on a Petition to Compel Accounting and to Surcharge Trustee for Breach of Trust. The matter has been properly noticed. The Petition is based on the purported misappropriation of a Bank of America account by former Trustee Patricia Howard. The Petition shows that the Bank of America account was an asset of Gregg Conway as an individual. It does not establish that the Bank of America account was a Trust asset. The Petition provides there is a pour-over will but does not show that the will has been probated and that the Bank of America account has been distributed to the Trust. Based on the foregoing, it appears that a Trust Petition is premature. **An appearance is necessary on today's calendar to discuss the character of the Bank of America account; specifically, whether it is a Trust asset or if it is an asset of Gregg Conway as an individual.**

IN RE: HENRY J. KELMAN IRREVOCABLE TRUST

CASE NUMBER: 26PB-0033474

This matter is on calendar for hearing on a Petition to Compel Accounting and Providing Information for the Henry J. Kelman Irrevocable Trust. The matter has been properly noticed with proof of service on file. No objections have been raised. The paperwork appears to be in order. The Petition is **GRANTED**. A proposed order has been lodged with the court and will be